

IPR UNIT - 2

LINK:-https://docs.google.com/document/d/1nkXlwbxOJchxhbaWilQFuB_hBYoomCIX4vTrptviUrE/edit?usp=sharing

Part A: The Law of Trademarks

1.0 Fundamentals of Trademark Law

1.1 Defining a Trademark: Core Concepts

A trademark serves as the commercial signature of a business, encapsulating its identity, reputation, and the quality of its offerings in a single, recognizable form. Understanding its definition is the first step in appreciating its legal and commercial significance.

- **General Definition:** In its broadest sense, a trademark is any word, name, symbol, device, or a combination of these elements used by a person or entity in commerce. Its primary purpose is twofold: to identify and distinguish the goods or services of one seller or provider from those of others, and to indicate the source of those goods or services.¹ This expansive definition has allowed the concept to evolve beyond simple brand names and logos to include more unconventional identifiers such as sounds, fragrances, shapes, and colors, provided they can function as a source indicator.¹
- **Indian Legal Definition (The Trade Marks Act, 1999):** The Indian legal framework provides a precise and modern definition. Section 2(1)(zb) of The Trade Marks Act, 1999, defines a trademark as "a mark capable of being represented graphically and which is capable of distinguishing the goods or services of one person from those of others and may include shape of goods, their packaging and combination of colours".² This statutory definition is significant for its explicit inclusion of non-conventional marks. The requirement that a mark be "capable of being represented graphically" serves as a flexible yet practical threshold. While words and logos are inherently graphical, this clause has been interpreted to accommodate modern branding strategies, allowing for the registration of three-dimensional shapes (like the Coca-Cola bottle), unique packaging designs (known as trade dress), and specific color combinations.² Recent amendments to the rules have even extended this to sound marks, which can be represented graphically through musical notation, demonstrating the law's capacity to adapt to new forms of branding.²
- **Key Requirement: Distinctiveness:** The absolute cornerstone of trademark law, both

in India and globally, is the requirement of distinctiveness. For a mark to be protectable, it must be capable of distinguishing the applicant's goods or services from those of its competitors.¹ This distinctiveness can be either:

1. **Inherent:** The mark is unique and creative from its inception (e.g., a coined word like 'Kodak').
2. **Acquired:** The mark, though originally descriptive, has through extensive use, advertising, and public recognition, come to be exclusively associated with a single source in the minds of consumers. This is known as "secondary meaning".¹ A mark that lacks distinctiveness fails at its primary task and cannot be granted exclusive rights.

1.2 Purpose and Function of a Trademark in Commerce

The significance of a trademark extends far beyond a mere name or logo; it is a critical asset that performs several indispensable functions in the marketplace, benefiting both businesses and consumers.¹ The initial role of a trademark as a simple indicator of origin on physical goods, as seen in medieval craft guilds, has evolved dramatically.¹ The modern legal and commercial understanding, strongly reflected in Indian jurisprudence, treats a trademark as a dynamic asset that embodies the goodwill and reputation of a business.⁶ This evolution means that the functions of quality assurance and advertising are now as vital as the traditional function of source identification. This conceptual shift underpins why trademark law protects not only against consumer confusion but also against the dilution or tarnishment of a brand's reputation, recognizing that the mark itself possesses substantial intrinsic value. The primary functions are:

- **Identification of Source and Origin:** This is the most fundamental function. A trademark identifies the goods or services of one entity and distinguishes them from those offered by others.¹ It answers the consumer's question: "Who made this?" or "Who is providing this service?" The trademark guarantees the identity of the origin of the trademarked goods to the end-user, enabling them to make informed choices without confusion.⁶
 - **Example (India):** The trademark 'Brooke Bond' on a package of tea immediately identifies it as originating from a specific company, distinguishing it from other brands like 'Taj Mahal' tea.⁶
- **Guarantee of Quality (Quality Function):** A trademark is a silent promise of consistent quality. Consumers who have a positive experience with a product learn to associate its trademark with that level of quality. When they see the same mark on another product, they expect it to meet the same standard.¹ This function builds consumer trust and loyalty, which are the foundations of a strong brand.⁸
 - **Example (India):** A consumer purchasing a product with the 'TATA' mark expects a certain level of quality and reliability, regardless of whether it is a car, a bag of salt, or a piece of steel. This consistency is guaranteed by the trademark.

- **Advertising and Marketing Tool (Advertising Function):** Trademarks are the focal point of advertising and promotional activities. Companies invest enormous resources in building a positive image around their marks, so that the mark itself becomes a powerful marketing tool.¹ A strong trademark can convey a complex message about the product's attributes, benefits, and even its aspirational value, often more effectively than words alone.⁶
 - **Example (India):** The 'M' logo of McDonald's instantly advertises a specific type of fast-food experience, creating an image in the consumer's mind that is reinforced through global marketing campaigns.⁶ Similarly, the 'Sony' mark is immediately associated with electronic goods of a certain caliber.⁶
- **Product Differentiation and Protection of Goodwill:** In a competitive market, trademarks are the primary means of achieving product differentiation.⁶ They allow businesses to build a unique identity and cultivate goodwill—the intangible but immensely valuable reputation and customer loyalty associated with a brand.⁸ Legal protection of trademarks safeguards this goodwill from being unfairly exploited by competitors who might use similar marks to deceive consumers.⁷ This protection ensures that the investment a company makes in its brand yields a fair return.⁸
 - **Example (India):** Advertisers for 'Surf' detergent work to build an image that its qualities are unique and cannot be replaced by competitors like 'Ariel' or 'RIN'. The goal is to make the consumer seek out the 'Surf' brand specifically, not just any detergent, thereby creating brand loyalty based on differentiation.⁶

1.3 The Indian Legislative Framework: The Trade Marks Act, 1999

The legal landscape for trademarks in India has evolved significantly to meet the demands of a modern, globalized economy.

- **Historical Context:** Prior to 1940, trademark protection in India was based on the common law principles of passing off and equity, inherited from the English legal system. The first statute, the Trade Marks Act, was enacted in 1940. This was later replaced by the Trade and Merchandise Marks Act of 1958. As trade and commerce expanded, a more robust law became necessary, leading to the enactment of the current governing statute, The Trade Marks Act, 1999.²
- **Objectives of the 1999 Act:** The Trade Marks Act, 1999, was a comprehensive overhaul of the existing law. Its primary objectives were to amend and consolidate the law, provide for the registration and better protection of trademarks for both goods and services, prevent the use of fraudulent marks, and, crucially, to bring Indian law into compliance with its international obligations under the Trade-Related Aspects of Intellectual Property Rights (TRIPS) Agreement.² This modernization was essential for India's participation in the global economy, ensuring that its intellectual property standards were aligned with those of its trading partners. The Act notably introduced provisions for the registration of service marks, collective marks, and enhanced

protection for well-known marks.³

- **Administration:** The trademark system in India is administered by the Office of the Controller General of Patents, Designs and Trade Marks (CGPDTM). This government agency operates under the Department for Promotion of Industry and Internal Trade (DPIIT), within the Ministry of Commerce and Industry.² The CGPDTM is responsible for the examination and registration of trademark applications and the maintenance of the Register of Trade Marks.

2.0 Trademark Acquisition, Rights, and Protection in India

2.1 Acquiring Trademark Rights: A Dual System

In the landscape of international trademark law, jurisdictions are broadly categorized as either "first-to-file" or "first-to-use." India firmly belongs to the latter category, a principle that fundamentally shapes how trademark rights are acquired and protected.

- **The Foundational Principle: "First-to-Use":** The cornerstone of Indian trademark law is that ownership rights are established through prior adoption and use of the mark in commerce.⁷ This means that the first person or entity to use a mark in the marketplace is considered the rightful owner, irrespective of who files for registration first. This principle gives primacy to the actual market reality of a brand's existence and the goodwill it has generated.
- **Two Paths to Protection:** This "first-to-use" doctrine creates a dual system of protection, offering two distinct but complementary pathways for trademark owners to enforce their rights.²
 1. **Statutory Rights (via Registration):** These rights are acquired by successfully registering the trademark under The Trade Marks Act, 1999. Registration provides a powerful, government-sanctioned monopoly over the mark, offering clear, nationwide, and more easily enforceable rights.²
 2. **Common Law Rights (via Use):** These rights are acquired organically through the continuous use of a mark in the course of trade, leading to the accumulation of goodwill and reputation among consumers. These rights exist even if the mark is never registered and are protected through the common law tort action of "passing off".²

This dual system is not merely a technicality but a strategic framework. A business can build enforceable rights through market presence alone, which acts as a crucial safety net. However, registration offers a far more potent and proactive legal tool. These two systems are designed to work in tandem. As demonstrated in landmark cases, a common law claim of passing off based on prior use can even be used to challenge a subsequently registered trademark, illustrating that in India, market reality can legally supersede procedural

registration. This necessitates a holistic trademark strategy that combines robust market penetration with formal legal registration.

2.2 Rights of a Registered Trademark Owner (Section 28, The Trade Marks Act, 1999)

Upon successful registration, a trademark owner is vested with a bundle of powerful statutory rights that provide a significant commercial and legal advantage. These rights are enumerated primarily under Section 28 of the Act.¹⁰

- **Exclusive Right to Use:** The most significant right is the exclusive right to use the trademark in relation to the specific goods or services for which it has been registered.³ This means the owner can prevent all others from using the mark, or a deceptively similar mark, for those goods or services.
- **Right to Obtain Relief for Infringement:** Registration grants the owner the statutory authority to initiate legal proceedings for trademark infringement against any unauthorized user.⁵ This right allows the owner to seek powerful remedies from the courts, including injunctions to stop the infringing activity and monetary compensation for damages.
- **Prima Facie Evidence of Validity:** The Certificate of Registration is considered prima facie evidence of the trademark's validity and the owner's proprietorship in any legal dispute.¹ This is a crucial procedural advantage, as it shifts the burden of proof in an infringement suit to the defendant, who must then prove that the plaintiff's registration is invalid.
- **Nationwide Protection:** Unlike common law rights, which may be geographically limited, a federal registration confers protection across the entire territory of India.¹ This prevents a competitor from using a similar mark in a different state, even if the registered owner has no business operations there.
- **Right to Assign and License:** A registered trademark is recognized as an intangible property asset. As such, the owner has the right to transfer ownership through assignment, or to permit others to use the mark through a licensing agreement, often in exchange for royalties.⁵ This allows the trademark to be commercially leveraged and monetized.

2.3 Protection Mechanisms in India

India provides two primary legal mechanisms to protect trademarks from unauthorized use: the statutory action for infringement and the common law action of passing off.

- **Statutory Protection: Trademark Infringement (Section 29)**
 - **Definition:** Trademark infringement is a violation of the exclusive rights granted to the owner of a *registered* trademark. It occurs when an unauthorized person uses

a mark that is identical or deceptively similar to the registered mark in relation to goods or services for which the mark is registered, in a manner that is likely to cause confusion among the public.⁴

- **Conditions for an Infringement Suit:** To succeed in an infringement lawsuit, the plaintiff must establish the following conditions:
 1. The plaintiff's trademark must be registered with the Trade Marks Registry.
 2. The defendant must be using a mark that is either identical to or deceptively similar to the plaintiff's registered mark.
 3. The defendant's use must be in the course of trade and in relation to goods or services that are covered by the plaintiff's registration (or are of a similar description).
 4. The unauthorized use must be likely to cause confusion on the part of the public or create a false impression of an association with the registered owner.⁴

- **Common Law Protection: The Action of Passing Off**

- **Purpose:** The action of passing off is a common law remedy designed to protect the goodwill and reputation associated with an *unregistered* trademark.² It is founded on the fundamental principle of commercial fairness: that no one has the right to represent their goods or services as the goods or services of another.⁷
- **The "Classical Trinity" (Elements to Prove):** Since it is not based on a statutory right, the burden of proof in a passing off action is heavier than in an infringement case. The plaintiff must prove three essential elements, often referred to as the "classical trinity":
 1. **Goodwill/Reputation:** The plaintiff must demonstrate that their mark has acquired a reputation and goodwill in the market, such that the public associates the mark with their goods or services.
 2. **Misrepresentation:** The plaintiff must show that the defendant has made a misrepresentation (whether intentional or unintentional) that is likely to deceive or confuse the public into believing that the defendant's goods or services are connected with the plaintiff.
 3. **Damage:** The plaintiff must prove that they have suffered, or are likely to suffer, actual damage to their business or goodwill as a result of the defendant's misrepresentation.⁷

- **Table 1: Distinction between Infringement and Passing Off**

Basis of Distinction	Trademark Infringement	Passing Off
Nature of Right	Statutory Right (arises from registration under The Trade Marks Act, 1999).	Common Law Right (arises from prior use, reputation, and goodwill in the market).
Mark Protection	Protects a registered trademark.	Protects an unregistered trademark.
Proof Required	The plaintiff primarily needs to prove the fact of registration	The plaintiff must prove the "classical trinity": goodwill,

	and that the defendant's mark is identical or deceptively similar, leading to a likelihood of confusion. The burden of proof is relatively straightforward.	misrepresentation, and resulting damage. The burden of proof is significantly heavier and requires extensive evidence of market reputation.
Geographical Scope	Protection is nationwide, covering the entire territory of India.	Protection is generally limited to the geographical area where the plaintiff has established and can prove the existence of their goodwill.
Governing Law	The Trade Marks Act, 1999 (specifically Section 29).	Common Law (tort principles developed and evolved through judicial precedents).

2.4 Landmark Case Studies in Trademark Protection

Indian courts have delivered several seminal judgments that have shaped the contours of trademark protection, particularly in balancing the rights of global brands with local enterprises and prioritizing public interest in sensitive sectors.

- **Case Study: *N.R. Dongre v. Whirlpool Corporation (1996)***
 - **Facts:** Whirlpool Corporation, a globally recognized brand, had a significant international reputation for its home appliances. Although its trademark registration in India had lapsed in 1977, its brand was known in the country through advertisements in international magazines. The defendants, N.R. Dongre and others, began using the 'Whirlpool' trademark for their washing machines and secured a registration for the mark in India. Whirlpool sued for passing off to protect its prior use and reputation.¹²
 - **Judgment & Principle:** The Supreme Court of India ruled in favor of Whirlpool, establishing the crucial doctrine of "**trans-border reputation**" or "**spillover reputation**." The Court held that a trademark's reputation is not confined by geographical boundaries. Through modern communication and media, a brand's goodwill can permeate a market like India even without direct sales or a physical business presence. This established reputation is a form of property protectable through a passing off action. The judgment affirmed that a prior user with a trans-border reputation has superior rights to a subsequent user, even if the subsequent user has obtained a local registration. This case decisively cemented the supremacy of the "first-to-use" principle over a "first-to-file" approach in Indian trademark jurisprudence.¹²
- **Case Study: *Cadila Healthcare Ltd. v. Cadila Pharmaceuticals Ltd. (2001)***

- **Facts:** The case involved a dispute between two pharmaceutical companies that originated from the same parent entity and were both permitted to use the name "Cadila." The dispute arose over their respective trademarks for anti-malarial drugs: "Falcigo" (by Cadila Healthcare) and "Falcitab" (by Cadila Pharmaceuticals). Both drugs were used to treat falciparum malaria, and the plaintiff argued that the phonetic similarity between the names was likely to cause confusion among medical professionals and patients.¹²
- **Judgment & Principle:** The Supreme Court laid down a **stricter standard for assessing deceptive similarity in the pharmaceutical industry**, emphasizing that public interest and patient safety must be paramount. The Court reasoned that unlike ordinary consumer goods, a mistake in medicines could have severe, even fatal, consequences. Therefore, a lower threshold for proving confusion should be applied. The Court outlined several factors to be considered, including the type of drug, the class of purchasers (including doctors and chemists), and the mode of purchase. It explicitly stated that the fact that drugs are sold by prescription does not eliminate the risk of confusion due to illegible handwriting or verbal orders. This judgment serves as a powerful illustration of how public policy considerations can directly modify the application of standard intellectual property tests. The usual commercial balancing of rights is subordinated to the overriding concern for public health, mandating a higher degree of care for trademarks in the pharmaceutical sector.¹²

3.0 The Trademark Registration Process in India [FIG]

The process of registering a trademark in India is a structured, multi-stage procedure administered by the Trade Marks Registry (TMR). It is governed by The Trade Marks Act, 1999, and the supporting Trademark Rules, 2017.² This process is not merely an administrative formality; it functions as a rigorous filtering system designed to ensure that only marks that meet the statutory criteria for validity are entered onto the official Register of Trade Marks, thereby maintaining the integrity of the register.

3.1 Overview of the Process

The registration journey begins with the selection and searching of a mark and culminates in the issuance of a registration certificate, which grants statutory protection for a period of ten years, with the possibility of indefinite renewals.²² While a smooth registration can be completed in approximately 6 to 8 months, the timeline can extend significantly if the TMR raises objections or if a third party opposes the application.²³ A key development in recent years is the transition to a predominantly digital system. The vast majority of applications (around 98%) are now filed electronically through the TMR's online portal, a policy shift that

has made the process more efficient, transparent, and accessible, particularly for individuals and startups who benefit from lower e-filing fees.²²

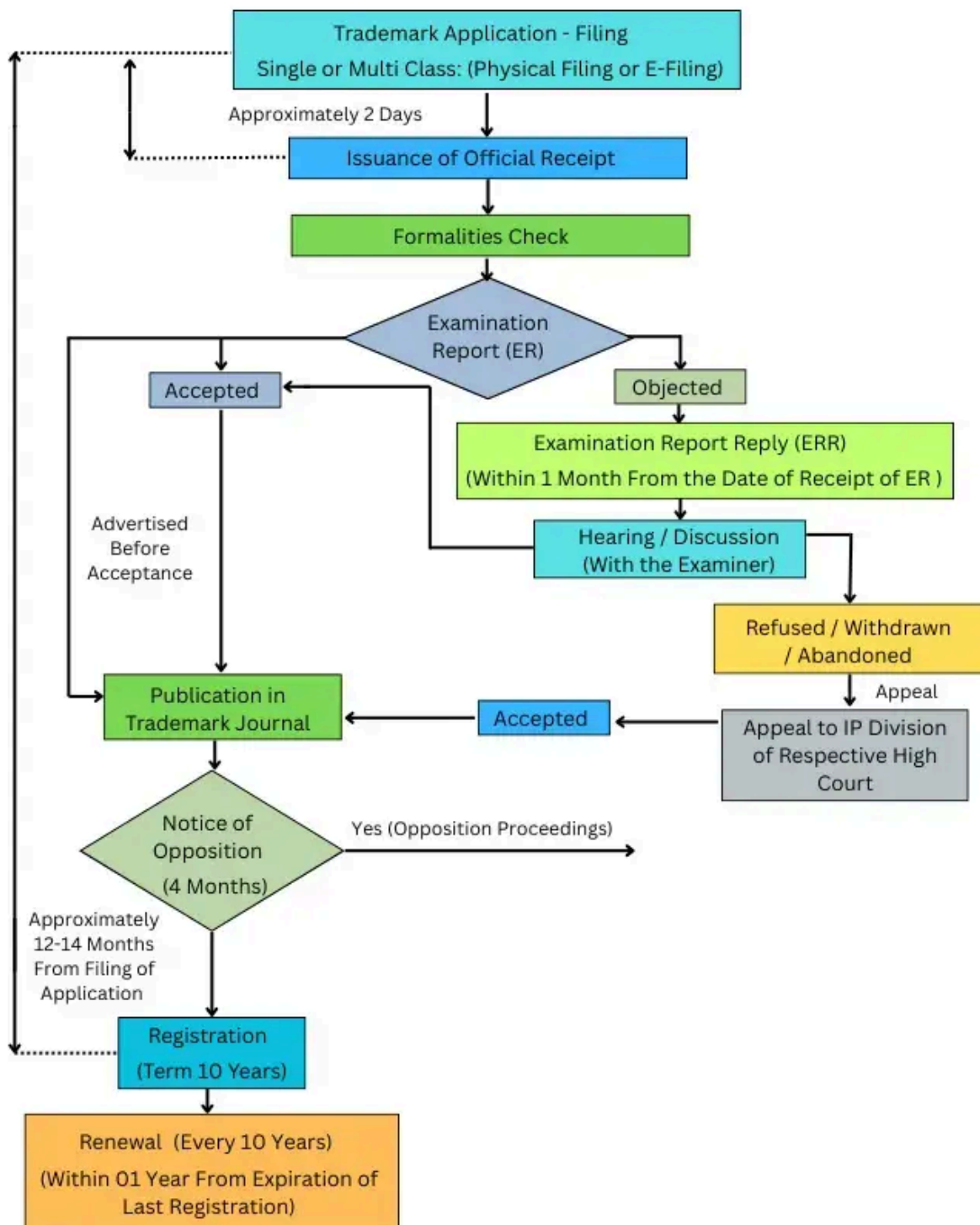
3.2 Step-by-Step Procedural Analysis

- **Step 1: Trademark Search and Classification**
 - **Search:** The first and most critical preliminary step is to conduct a thorough search of the TMR's online database. This is to ascertain whether the proposed mark, or a similar one, is already registered or pending for similar goods or services.²⁴ A comprehensive search helps in assessing the registrability of the mark and significantly minimizes the risk of facing objections or oppositions later in the process.
 - **Classification:** The applicant must correctly classify the goods and/or services for which the trademark will be used. India adheres to the **NICE Classification of Goods and Services**, an international system that divides all goods and services into 45 distinct classes. Classes 1 to 34 are for goods, and classes 35 to 45 are for services.² Protection is granted only for the specific classes mentioned in the application, making accurate classification essential.
- **Step 2: Filing the Application (Form TM-A)**
 - Once the search and classification are complete, the application for registration is filed using **Form TM-A**.²⁴ This can be done either online through the e-filing gateway or physically at one of the TMR offices.²²
 - **Required Information:** The application must contain the applicant's name and address, a clear representation of the trademark, the list of goods/services and their corresponding classes, and a statement regarding the use of the mark. If the mark is already in use, the date of first use must be provided along with a supporting affidavit. If it is not yet in use, the application is filed on a "proposed-to-be-used" basis.⁴
 - Upon successful filing, the TMR issues an official receipt with an application number. At this point, the applicant is entitled to use the ™ (Trademark) symbol with their mark.⁷
- **Step 3: Examination by the Registry**
 - After filing, the application is allotted to an Examiner at the TMR. The Examiner scrutinizes the application to ensure it complies with all procedural requirements and that the mark is registrable under the provisions of the Act.²²
 - The examination involves checking for:
 - **Absolute Grounds for Refusal (Section 9):** Marks that are devoid of any distinctive character, are descriptive of the goods/services, have become customary in the trade, or are likely to deceive the public or hurt religious sentiments.⁵
 - **Relative Grounds for Refusal (Section 11):** Marks that are identical or

confusingly similar to an earlier trademark registered or applied for by another party for similar goods/services.¹⁰

- If the Examiner finds any objections, an **Examination Report** is issued. The applicant is given 30 days to submit a written response to these objections. If the response fails to satisfy the Examiner, a hearing is scheduled to allow the applicant to present their case orally.²² This stage acts as the first critical filter in the registration process.
- **Step 4: Publication in the Trade Marks Journal**
 - If the Examiner is satisfied that the mark is registrable and all objections have been overcome, the application is accepted and ordered for publication in the official **Trade Marks Journal**.²²
 - This publication serves as a public notice, effectively inviting any third party who might be aggrieved by the registration to oppose it. This stage represents the second, market-based filter, empowering competitors and the public to act as watchdogs for the integrity of the register.
- **Step 5: Opposition Proceedings**
 - Following publication, there is a statutory period of **four months** during which any person can file a **Notice of Opposition** against the registration of the trademark.⁴
 - If an opposition is filed, it initiates a quasi-judicial proceeding before the Registrar. The applicant must file a **counter-statement** in response. Both parties are then required to submit evidence in support of their claims, followed by a hearing. The Registrar hears both sides and delivers a decision on whether the mark should proceed to registration or be refused.²²
- **Step 6: Registration and Renewal**
 - If no opposition is filed within the four-month period, or if an opposition is decided in the applicant's favor, the TMR will accept the mark for registration.²²
 - A **Certificate of Registration** is issued, which is conclusive proof of registration. The owner can now legally use the registered trademark symbol (®) next to their mark.⁷
 - The trademark registration is valid for a period of **10 years** from the date the application was filed. It can be renewed indefinitely for successive periods of 10 years by paying the prescribed renewal fees.²²

3.3 Diagrammatic Representation [FIG]



Part B: The Law of Copyrights

4.0 Foundations of Copyright Law in India

4.1 Defining Copyright and its Significance

Copyright is a vital form of intellectual property that forms the bedrock of the creative industries. It is designed to protect and incentivize the creation of original works of authorship, thereby fostering cultural and scientific progress.

- **General Concept:** Copyright is a legal right granted by law to the creators of literary, dramatic, musical, and artistic works, as well as producers of cinematograph films and sound recordings.¹ It is essentially a "bundle of rights" that gives the owner the exclusive authority to control and benefit from the use of their creation for a specific period.²⁷ These rights include the ability to reproduce, distribute, adapt, perform, and display the work.¹
- **The Idea-Expression Dichotomy:** A central and universally recognized principle of copyright law is the **idea-expression dichotomy**. This doctrine stipulates that copyright protects only the specific *expression* of an idea, not the idea, concept, procedure, or factual information itself.²⁶ For example, the idea of a young wizard attending a magical school is not protectable. However, the specific story, characters, and text of the Harry Potter books are protected expressions of that idea. This distinction is crucial as it prevents the monopolization of ideas, ensuring they remain in the public domain as building blocks for future creative works.²⁹
- **Indian Legal Framework:** In India, the governing statute is **The Copyright Act, 1957**. This Act has been amended multiple times to keep pace with technological advancements, with the most significant recent amendment occurring in 2012, which introduced changes to address the challenges of the digital environment and to align Indian law with international treaties like the WIPO Copyright Treaty (WCT) and WIPO Performances and Phonograms Treaty (WPPT).²⁷
- **Significance:** The primary purpose of copyright law is to encourage creativity and the production of new works by providing creators with a mechanism to receive financial rewards and recognition for their intellectual labor.²⁶ By granting a limited monopoly, the law creates an economic incentive for authors, artists, and musicians to invest their time and resources in creative endeavors. It seeks to strike a delicate balance between protecting the rights of creators and ensuring that the public has access to knowledge and culture.²⁶

4.2 Subject Matter of Copyright Protection

The Copyright Act, 1957, provides protection to a wide array of creative works, provided they meet certain criteria.

- **Categories of Protected Works:** The Act extends protection to the following categories of original works ²⁶:
 - **Literary Works:** This is a broad category that includes books, articles, poems, tables, compilations, and, significantly, computer programs and software.
 - **Dramatic Works:** Includes plays, scripts, screenplays, and choreographic works.
 - **Musical Works:** Refers to the musical composition itself (the melody and harmony), separate from the lyrics or the sound recording.
 - **Artistic Works:** Includes paintings, sculptures, drawings, engravings, photographs, works of architecture, and other works of artistic craftsmanship.
 - **Cinematograph Films:** Encompasses any work of visual recording, including what is commonly known as a movie or video.
 - **Sound Recordings:** Refers to a recording of sounds from which sounds may be produced, regardless of the medium on which such recording is made.
- **Requirements for Protection:** For a work to be eligible for copyright protection, it must satisfy two fundamental conditions:
 1. **Originality:** The work must be original, meaning it should originate from the author and not be a copy of another work. It does not need to be novel or have artistic merit, but it must be the product of the author's own skill and labor.
 2. **Fixation:** The work must be fixed in a tangible medium of expression (e.g., written on paper, saved to a hard drive, recorded on tape) from which it can be perceived, reproduced, or communicated.²⁶
- **Automatic Protection:** A key feature of copyright law in India, in line with the Berne Convention, is that protection is **automatic**. Copyright comes into existence the moment an original work is created and fixed in a tangible form. There is no legal requirement to register the work with the Copyright Office to secure copyright.²⁶ However, registration is strongly recommended as it serves as prima facie evidence of ownership in court and is a mandatory prerequisite for initiating an infringement lawsuit.¹ This system is designed to be creator-friendly but creates a powerful practical incentive for registration to ensure enforceability.

4.3 Landmark Case Study: *R.G. Anand v. Delux Films (1978)*

This Supreme Court case is the foundational judgment on copyright infringement in India and is instrumental in clarifying the application of the idea-expression dichotomy.

- **Facts:** The plaintiff, R.G. Anand, was the author of a popular play titled 'Hum Hindustani'. He alleged that the defendant's film, 'New Delhi', was a direct copy of his play. Both

works were comedies centered on the theme of provincialism and regional prejudices in India, featuring characters from different regions who fall in love and face opposition.³³

- **Judgment & Principle:** The Supreme Court, after a detailed comparison of the play and the film, ruled that there was no copyright infringement. In doing so, it laid down several guiding principles that have become the cornerstone of Indian copyright jurisprudence:
 1. **Reinforcement of the Idea-Expression Dichotomy:** The Court emphatically stated that there can be no copyright in an idea, theme, plot, or subject matter. These are considered common property, available for all to use. Copyright subsists only in the specific manner, arrangement, and expression of that idea.²⁹
 2. **The "Ordinary Observer Test" for Substantial Similarity:** The Court formulated a crucial test to determine infringement: "Whether the reader, spectator or the viewer after having read or seen both the works is clearly of the opinion and gets an unmistakable impression that the subsequent work appears to be a copy of the original."³⁰ This test focuses on the overall impression on a layperson, not a meticulous dissection by an expert. It brilliantly balances the need to protect creators from blatant copying while allowing subsequent authors to draw inspiration from existing themes and ideas, as long as their expression is original. This ensures that copyright law promotes creativity rather than stifling it.
 3. **Dissimilarities Matter:** The Court noted that if there are significant differences and dissimilarities between the two works alongside some similarities, it negates an intention to copy and points towards independent creation.³⁰ In this case, the Court found that the treatment, climax, and overall presentation of the film were substantially different from the play, even though the central theme was the same.

5.0 Rights, Protection, and Infringement under the Copyright Act, 1957

5.1 The Bundle of Rights Granted to a Copyright Owner

The Copyright Act, 1957, confers a "bundle of rights" upon the owner of a copyright. These rights are exclusive, meaning only the owner can exercise them or authorize others to do so. They can be licensed or assigned individually or collectively.²⁷ These rights are broadly categorized into economic rights and moral rights.

- **Economic Rights (Section 14):** These rights allow the owner to commercially exploit their work and derive financial benefit. They include the exclusive right to ³⁷:
 1. **Reproduce the Work:** To make copies of the work in any material form, including storing it in any electronic medium.
 2. **Distribute the Work:** To issue copies of the work to the public by way of sale,

rental, or lending.

3. **Perform the Work in Public or Communicate it to the Public:** To perform the work live or broadcast it through various media like radio, television, or the internet.
 4. **Create Adaptations and Derivative Works:** To create new works based on the original, such as making a movie from a book, creating a remix of a song, or abridging a literary work.
 5. **Make Translations:** To translate the work from one language to another.
- **Moral Rights (Author's Special Rights - Section 57):** These rights are personal to the author and are independent of the economic rights. They are intended to protect the author's personality and reputation as reflected in their work. Crucially, these rights remain with the author even after they have sold or assigned their economic rights.²⁶ This legal provision is a significant philosophical statement, recognizing that a creative work is an extension of the author's persona, not just a commercial asset. The two primary moral rights are:
 1. **Right of Paternity (Attribution):** The right of the author to claim authorship of their work and to have their name associated with it wherever it is used.
 2. **Right of Integrity:** The right to restrain or claim damages in respect of any distortion, mutilation, modification, or other act in relation to the work which would be prejudicial to the author's honor or reputation.
 - **Duration of Copyright:** For most categories of works (literary, dramatic, musical, and artistic), the term of copyright protection in India is for the **lifetime of the author plus 60 years** counted from the year following the author's death.²⁶ For cinematograph films and sound recordings, the term is 60 years from the year of publication.

5.2 Infringement of Copyright (Section 51)

Copyright infringement is the unauthorized use of a copyrighted work, thereby violating the exclusive rights of the copyright owner.

- **Definition:** According to Section 51 of the Act, copyright in a work is deemed to be infringed when any person, without a valid license from the copyright owner or the Registrar of Copyrights, does anything that the owner has the exclusive right to do.²⁶ This is known as **primary infringement**.
- **Secondary Infringement:** The Act also provides for secondary liability. A person can be held liable for infringement if they, for profit, permit a place to be used for the public performance of a work, or if they sell, distribute, or import infringing copies of a work.
- **Proving Infringement:** To establish a case of copyright infringement, the plaintiff must prove two key elements, as affirmed in the *R.G. Anand* case:
 1. **Ownership of a Valid Copyright:** This is typically proven by submitting the Certificate of Registration from the Copyright Office, which serves as *prima facie*

evidence.

2. **Copying of the Work by the Defendant:** Since direct evidence of copying is rare, it is usually established through circumstantial evidence by demonstrating:
 - **Access:** The defendant had a reasonable opportunity to view or hear the plaintiff's original work.
 - **Substantial Similarity:** The defendant's work is substantially similar to the protected elements of the plaintiff's work, as determined by the "ordinary observer test."

- **Illustrations of Infringement:**

- Making and selling photocopies of a substantial portion of a textbook without permission.
- Uploading a recently released movie onto a file-sharing website for others to download.
- Playing recorded music from CDs or streaming services in a large commercial establishment like a restaurant or gym without obtaining a public performance license from the appropriate copyright society.
- Creating a sequel to a novel using the same characters without the original author's authorization.

5.3 Remedies for Infringement

The Copyright Act, 1957, provides a robust enforcement mechanism with a three-tiered system of remedies for copyright owners whose rights have been violated.²⁷

1. **Civil Remedies (Section 55):** A copyright owner can file a civil suit in a district court to seek remedies such as:
 - **Injunction:** A court order prohibiting the infringer from continuing the infringing activities. This is often the most important remedy sought.
 - **Damages:** Monetary compensation to the owner for the financial losses suffered due to the infringement.
 - **Account of Profits:** An alternative to damages, where the infringer is required to hand over the profits they earned from the unauthorized use of the copyrighted work.²⁶
2. **Criminal Remedies (Section 63):** The inclusion of stringent criminal penalties elevates copyright infringement from a private dispute to a public offense, acting as a powerful deterrent against commercial piracy.
 - **Punishment:** Any person who knowingly infringes or abets the infringement of a copyright commits a criminal offense. The prescribed punishment is **imprisonment for a term of not less than six months, which may extend to three years, and a fine of not less than ₹50,000, which may extend to ₹2,00,000.**³⁹
 - **Police Powers (Section 64):** The Act empowers any police officer, not below the

rank of a sub-inspector, to seize all infringing copies of a work without a warrant if they are satisfied that an offense is being committed.⁴¹ This provision allows for swift action against pirates.

3. **Administrative Remedies:** The copyright owner can apply to the Registrar of Copyrights to prevent the importation of infringing copies into India. The customs authorities are empowered to stop such copies at the border.

5.4 Distinction between Copyright and Related Rights

While closely associated, copyright and related rights (also known as neighbouring rights) protect different contributions within the creative ecosystem.

- **Copyright:** This right protects the primary creators of the work—the authors, composers, and artists who bring the original work into existence.³² It safeguards the intellectual creation itself.
- **Related Rights (or Neighbouring Rights):** These rights do not protect the original work but rather the legal interests of individuals and entities who play a crucial role as intermediaries in communicating the work to the public. They protect the skill, investment, and effort involved in the presentation and dissemination of the original work.³² In India, the Copyright Act protects three main categories of related rights holders:
 1. **Performers (e.g., actors, singers, musicians):** They have rights over their live performances, protecting them from unauthorized recording, broadcasting, and reproduction.
 2. **Producers of Phonograms (Sound Recordings):** They have rights against the unauthorized duplication and distribution of their recordings.
 3. **Broadcasting Organizations:** They have rights against the unauthorized re-broadcasting and recording of their broadcasts.

• **Table 2: Key Differences between Copyright and Related Rights**

Feature	Copyright	Related (Neighbouring) Rights
Subject of Protection	The original literary, dramatic, musical, or artistic work itself (e.g., the sheet music of a song).	The performance, sound recording, or broadcast of the work (e.g., a specific singer's recorded performance of that song).
Beneficiary	The author, composer, artist (the primary creator).	The performer, producer of the sound recording, broadcasting organization (the intermediary).
Nature of Right	Protects the originality and intellectual creativity embodied in the work.	Protects the investment, technical skill, and entrepreneurial effort in

		performing, recording, or broadcasting the work.
Example	The copyright in the lyrics and musical score of the song "Jai Ho" belongs to the lyricist Gulzar and composer A.R. Rahman.	The related rights in a specific recorded version of "Jai Ho" belong to the singer Sukhwinder Singh (performer) and the record label (producer).

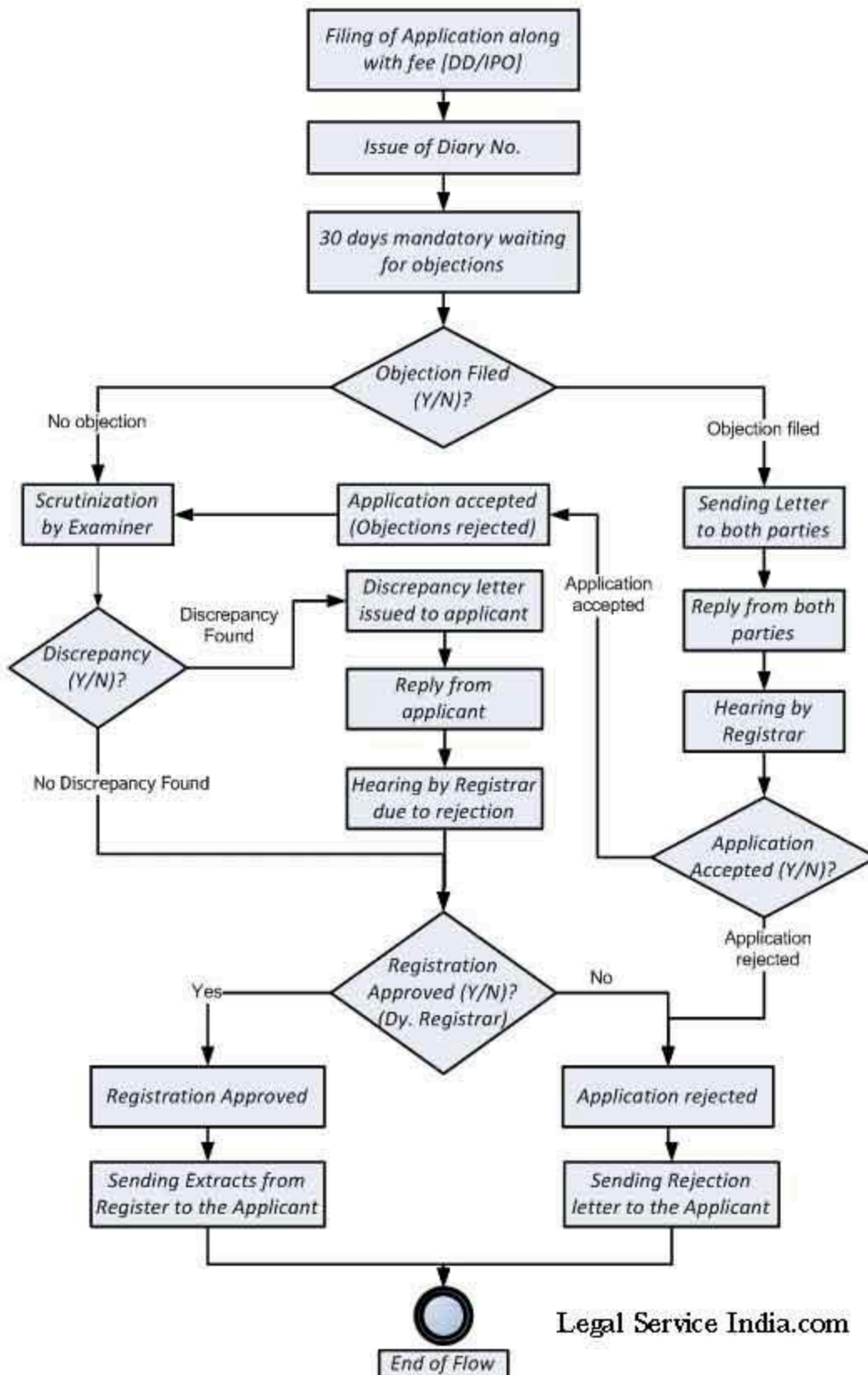
5.5 The Copyright Search Process in India[FIG]

Although copyright protection is automatic, conducting a search of the copyright register is a prudent step before using, adapting, or commercially exploiting a work. It helps in identifying the copyright owner to seek licenses and in avoiding potential infringement litigation.

- **Purpose:** The primary purpose of a copyright search is to determine if a work is already registered, who the owner is, and the status of the copyright. This is particularly important for businesses looking to license content or for creators wanting to ensure their work is unique.
- **Procedure:** The search is conducted through the official online portal of the Indian Copyright Office, which is part of the CGPDTM website.⁴³
- **Searchable Database:** The portal provides access to the "E-Register" of copyrights. Users can search the database of registered works using various parameters, including:
 - Diary Number (the number assigned upon filing an application)
 - ROC Number (Registration of Copyright Number)
 - Name of the Applicant/Author
 - Title of the Work
- **Analyzing Results:** The search results provide details about the registered work, including the type of work, the names of the author and owner, and the date of registration. This information is critical for due diligence and for contacting the rights holder for permissions.

(A flowchart illustrating the Copyright Search Process, steps: 1. Go to the official Indian Copyright Office website. 2. Navigate to the "Search Work" or "E-Register" section. 3. Select the search parameter (e.g., Title, Applicant). 4. Enter the relevant keywords. 5. Execute the search. 6. Review the search results for any conflicting or relevant registered works.)

Copyright Registration Workflow



6.0 Contemporary Issues in Copyright and Related Laws

The principles of copyright and related rights are continuously being tested and reshaped by technological advancements and evolving social norms. Two areas of significant contemporary relevance in India are the protection of celebrity rights and the enforcement of academic integrity.

6.1 Celebrity Rights (Right of Publicity)

The right of a person to control the commercial use of their identity is known as the "Right of Publicity" or, more broadly, as personality/celebrity rights.

- **Definition:** This right allows an individual, particularly a celebrity whose identity has commercial value, to prevent others from using their name, image, likeness, voice, or other distinctive attributes for commercial purposes without permission.⁴⁴
- **Legal Basis in India:** India does not have a specific statute codifying personality rights. Instead, protection is derived from a confluence of different legal principles and judicial precedents⁴⁶:
 - **Right to Privacy:** The Supreme Court's landmark judgment in *Justice K.S. Puttaswamy (Retd.) v. Union of India* recognized the Right to Privacy as a fundamental right under Article 21 of the Constitution. The right of publicity is increasingly seen as an offshoot of this right.⁴⁷
 - **Intellectual Property Laws:** The Copyright Act can protect a celebrity's photograph as an artistic work or their voice as a sound recording. The Trade Marks Act can protect a celebrity's name or signature if it has been used as a trademark.⁴⁶
 - **Common Law Tort of Passing Off:** Unauthorizedly using a celebrity's persona to endorse a product can be considered an act of passing off, as it misrepresents an association and damages the celebrity's goodwill.⁴⁸
- **Case Study: Anil Kapoor v. Simply Life India & Ors. (2023)**
 - **Facts:** The veteran Bollywood actor Anil Kapoor approached the Delhi High Court seeking protection for his personality rights against a wide range of unauthorized uses. These included the sale of merchandise using his image, the use of his voice and dialogues as ringtones, and, most notably, the creation of AI-generated deepfakes and morphed videos for commercial and malicious purposes.⁴⁵
 - **Judgment & Significance:** The Delhi High Court granted a broad injunction in favor of the actor. This judgment is a landmark for several reasons. It explicitly recognized that a celebrity's persona—encompassing their name, image, voice, likeness, and even signature mannerisms and dialogues (like Kapoor's famous "Jhakaas")—constitutes protectable attributes. Crucially, the court directly addressed the emerging threat from new technologies like Artificial Intelligence,

acknowledging that AI-generated content can cause immediate and irreparable harm to a celebrity's reputation, goodwill, and right to livelihood. The case demonstrates the proactive role of the Indian judiciary in adapting existing legal principles to safeguard individual rights against novel technological challenges, setting a vital precedent for the digital age.⁴⁴

6.2 Academic Integrity and Plagiarism

In the academic world, the principles of originality and attribution are paramount. Plagiarism represents a serious breach of these principles.

- **Defining Academic Integrity and Plagiarism:**
 - **Academic Integrity:** This is the moral code of academia, encompassing values like honesty, trust, fairness, and responsibility in all academic activities. It means upholding intellectual honesty in research and scholarship.⁵⁰
 - **Plagiarism:** This is the act of presenting someone else's work, ideas, or words as one's own without giving proper credit to the original source. It is a form of intellectual theft and a serious ethical offense.⁵⁰
- **The Indian Framework: UGC Regulations, 2018:** To standardize the approach to this issue, the University Grants Commission (UGC) introduced the **(Promotion of Academic Integrity and Prevention of Plagiarism in Higher Educational Institutions) Regulations, 2018**. This comprehensive framework is mandatory for all Higher Educational Institutions (HEIs) in India.⁵¹
 - **Objectives:** The regulations aim to create awareness about academic ethics, establish institutional mechanisms like the **Institutional Academic Integrity Panel (IAIP)** to investigate allegations, and implement systems to detect and penalize plagiarism.⁵¹
 - **Detection:** HEIs are required to use plagiarism detection software to check all submitted theses, dissertations, and research publications.⁵⁴
- **Levels of Plagiarism and Penalties:** A key feature of the UGC regulations is the quantification of plagiarism based on the percentage of similarity detected by software. This codification of academic ethics represents a significant shift from treating plagiarism as a purely subjective moral issue to a regulated offense with defined consequences. The regulations exclude properly cited quotations, bibliographies, and common knowledge from the similarity check.⁵²
- **Table 3: Plagiarism Levels and Penalties for Students under UGC Regulations**

Level	Similarity Index	Penalty
Level 0	Up to 10%	Minor similarities, no penalty.
Level 1	Above 10% to 40%	The student shall be asked to submit a revised script within a stipulated time period not exceeding 6 months.

Level 2	Above 40% to 60%	The student shall be debarred from submitting a revised script for a period of one year.
Level 3	Above 60%	The student's registration for that programme shall be cancelled.

The regulations also prescribe stringent and separate penalties for faculty and staff, which can include the mandatory withdrawal of a manuscript, denial of annual increments, and a ban on supervising research students for a specified period.⁵²

- **Distinction between Plagiarism and Copyright Infringement:** While often related, these are two distinct concepts.
 - **Plagiarism** is an **ethical offense**. It is a violation of the rules of academia and a breach of trust against the original author. The core issue is the failure to give **attribution**. It is governed by institutional policies, such as the UGC regulations.⁵²
 - **Copyright Infringement** is a **legal offense**. It is a violation of the exclusive rights of the copyright holder. The core issue is the **unauthorized use** of a protected work, even if the source is cited. It is governed by The Copyright Act, 1957.⁵² An act of copying can simultaneously be plagiarism (if unattributed) and copyright infringement (if done without permission).

Appendix I: Key Tabular Comparisons

Table 4: Trademark vs. Copyright

Basis of Distinction	Trademark	Copyright
Subject Matter Protected	Protects any mark (word, logo, symbol, sound, shape, etc.) that serves as a source identifier for goods or services.	Protects original works of authorship (e.g., literary, artistic, musical, dramatic works, films, and software).
Primary Purpose	To prevent confusion in the marketplace, protect the goodwill and reputation of a brand, and distinguish one trader's goods from another's.	To protect the original expression of an idea and grant exclusive rights to the creator to control and benefit from their creative work.
Requirement for Protection	Distinctiveness. The mark must be capable of distinguishing the goods or services of one person from	Originality and Fixation. The work must be original (not copied) and fixed in a tangible medium of expression.

	those of others.	
Acquisition of Rights	In India, rights are acquired through prior use in the market (common law) or through registration under the Act (statutory).	Rights are acquired automatically upon the creation and fixation of the work. Registration is not required for protection to exist but is a prerequisite for enforcement in court.
Duration of Protection	10 years from the date of application. It can be renewed indefinitely for subsequent 10-year periods.	For most works, the term is the lifetime of the author plus 60 years after their death.
Governing Law in India	The Trade Marks Act, 1999.	The Copyright Act, 1957.
Symbol Used	™ is used for an unregistered trademark to claim rights. ® is used exclusively for a registered trademark.	© is the internationally recognized symbol for copyright. Its use is optional in India but recommended.